HYPERMARKET

CONTRACT OF LEASE
(Renewal Contract)

April 24, 2024 **Contract # 700101043**

MR. ADRIAN P. DIMACALI
Director
MARY GRACE FOODS, INC.
Blk. 2 Lot 25 & 27 Marian Rd. 2 Brgy. San Martin De Porres Parañaque City

Dear Mr. Dimacali:

We are pleased to confirm the renewal of your Contract of Lease at SM Hypermarket MARILAO branch, subject to the following terms and conditions:

BUSINESS NAME	**: MARY GRACE FOODS, INC.**
LOCATION CODE	**: S – 11**
FLOOR AREA	**: 18.68 sq. m.**
GROSS MONTHLY RENT	**: P45,000.00 (ex-VaT) or 15% of Gross Sales, whichever is higher**
PROMPT PAYMENT DISCOUNT	**: P7,000.00 from the Gross Monthly Rent, if paid on or before 10th day of the month**
ECR MAINTENANCE	**: N/A from Gross of Sales**
LEASE TERM	**: One (1) Year**
COMMENCEMENT DATE	**: July 1, 2024**
TERMINATION DATE	**: June 30, 2025**

Subject to thirty (30) days prior written notice, the Lease Term may be shortened and the Termination Date moved earlier should the SM Hypermarket Branch be scheduled for renovation during the Lease Term. Upon resumption of business operations after renovation and after due evaluation of LESSEE's account, a new Contract of Lease may be issued by SM Hypermarket to LESSEE.

OTHER CHARGES (Vatable except Documentary Stamp Tax)

Documentary Stamp Tax	**: P1,082.00**
Maintenance	**: P2,000.00**
Aircon	**: P155.00/sq.m./month**
Common Area	**: P135.00/sq.m./month**
Electricity / Water	**: Actual consumption based on sub-meter reading.**

Other special assessments, fines and penalties, interest charges, bio-augmentation, cleaning of exhaust, etc.

That this Contract will be deemed renewed at the end of the lease term under the same terms and conditions unless EITHER PARTY, makes known to the OTHER, in writing, its intention not to renew the same within sixty (60) days prior to the expiration of the lease term. LESSEE undertakes to observe the sixty (60) days period, otherwise, the security deposit shall be forfeited for failure to comply with this provision.

All other terms and conditions contained in the original Lease Contract and notarized by Atty. Josefina Wan-Remollo, under Doc. No. 445, Page No. 90, Book No. XIX, Series of 2021, which are not contradictory or inconsistent with the above shall remain valid and binding, otherwise, they are deemed amended and/or superseded. This may be immediately terminated for breach of the original Contract at the time of renewal, even if the same is discovered after signing hereof.

Kindly signify your conformity to the foregoing terms and conditions by signing on the space provided below and return the same within seven (7) days after hereof, otherwise it shall be deemed acceptance of all terms and conditions in the contract, thus, binding between the parties.

Thank you and we look forward to a continuing and fruitful business relationship with you.

Very truly yours,

SHEILA MARIE B. SALAMANCA
Assistant Vice President-Leasing

Conformity:

6.11.24

ADRIAN P. DIMACALI